

FOOD NINJA

Terms of Service

Effective Date: 2025年3月1日 / March 1, 2025

1. Acceptance of Terms

By downloading, installing, or using the Food Ninja mobile application or web platform (collectively, the "Service"), you agree to be bound by these Terms of Service ("Terms"). If you do not agree to these Terms, do not use the Service.

These Terms constitute a legally binding agreement between you ("User," "you," or "your") and Albert Huang ("we," "us," or "our"), the developer and operator of Food Ninja.

2. Description of Service

Food Ninja is a food waste reduction platform available as an iOS application and a web-based service. The Service includes the following features:

- Food expiry tracking with push notifications
- Optional sync of food expiry records to Google Calendar, Google Tasks, Apple Calendar, and Apple Reminders
- A database and interactive map of food donation centers
- AI-powered chat assistant for recipe suggestions, meal planning, and donation eligibility checks
- Voice and camera-assisted food record input using on-device OCR and image classification
- In-app purchases and subscription plans

We reserve the right to modify, suspend, or discontinue any feature or the Service at any time with or without notice.

3. Eligibility and Account Registration

The Service is intended for users of all ages. Users under the age of 13 (or the applicable age of digital consent in their jurisdiction) should use the Service only with verifiable parental or guardian consent, in compliance with the Children's Online Privacy Protection Act (COPPA) and applicable local laws.

To access personalized features, you must create an account using either your Apple ID (via Sign in with Apple) or your Google Account (via Sign in with Google). No other registration method is currently available.

By creating an account, you represent that any information you provide is accurate and that you will maintain the security of your login credentials. You are responsible for all activity that occurs under your account.

4. User Accounts and Data

4.1 Data We Collect and Store

Our servers store the following information associated with your account:

- Your email address
- Your display name
- Your Food Ninja subscription status
- Your AI credit usage
- Your Google OAuth refresh token (Google login users only) – stored solely for: (1) syncing food expiry records to Google Calendar and Google Tasks if you enable that feature, and (2) revoking our OAuth access upon account deletion. It is used for absolutely nothing else.

We do not store any other personal data on our servers. Food records, expiry data, and other locally generated content remain on your device and are not transmitted to or stored by our servers, except as described in Section 4.2 and Section 8.

4.2 On-Device Processing and AI Data

Camera input, OCR processing, image classification, and voice input are processed entirely on your device. No raw images, audio recordings, or intermediate processing results are transmitted to or stored by our servers.

When you use AI features, your prompt, relevant food records, and relevant donation center data are transmitted to our servers to generate an AI response. This data is processed in real time and is not stored, logged, or retained by us in any form after the response has been returned to your device.

4.3 Account Deletion

You may permanently delete your account at any time by navigating to Settings > Account within the app and confirming the deletion. Verification requires entry of the email address associated with your social login account and/or Face ID authentication.

Upon confirmed deletion, we will:

- Permanently and irreversibly delete all of your data from our servers
- Automatically revoke our access to your Google account by invalidating your OAuth refresh token via Google's OAuth revocation endpoint
- Terminate your active session and all associated JWT tokens

Account deletion is irreversible. Deleted data cannot be recovered.

5. Subscriptions and In-App Purchases

Food Ninja offers optional premium features through in-app purchases and auto-renewable subscriptions available via Apple's App Store. All billing, renewals, and refunds are handled exclusively by Apple in accordance with Apple's Terms of Sale and Subscription terms.

By subscribing, you authorize Apple to charge your Apple ID account on a recurring basis. You may manage or cancel your subscription at any time through your device's App Store subscription settings. Cancellation takes effect at the end of the current billing period.

We do not collect, process, or store any payment card information. All payment processing is performed solely by Apple.

6. AI Features and Disclaimer

Food Ninja includes AI-powered features including recipe generation, meal planning suggestions, and donation eligibility assessments. These features are provided for informational and convenience purposes only.

IMPORTANT DISCLAIMER: AI-generated content, including recipe suggestions, meal plans, and donation eligibility assessments, may be inaccurate, incomplete, or unsuitable for your specific circumstances. We make no representations or warranties, express or implied, regarding the accuracy, reliability, completeness, or fitness for a particular purpose of any AI-generated output.

TOTAL EXCLUSION OF AI LIABILITY: TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, ALBERT HUANG SHALL HAVE ABSOLUTELY NO LIABILITY WHATSOEVER FOR ANY HARM, LOSS, ILLNESS, INJURY, DEATH, FINANCIAL DAMAGE, PROPERTY DAMAGE, OR ANY OTHER ADVERSE OUTCOME OF ANY KIND ARISING OUT OF OR RELATED TO YOUR USE OF OR RELIANCE ON ANY AI-GENERATED CONTENT, REGARDLESS OF THE LEGAL THEORY UNDER WHICH SUCH CLAIM IS BROUGHT (INCLUDING CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY, OR OTHERWISE) AND EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGE. THIS EXCLUSION APPLIES IN FULL AND IS NOT SUBJECT TO THE GENERAL LIABILITY CAP IN SECTION 12.

Always exercise independent judgment and consult qualified professionals (including medical, nutritional, or food safety professionals) as appropriate before acting on any AI-generated content.

Donation eligibility information provided by the AI is indicative only. Final eligibility decisions rest solely with individual donation centers.

7. Map, Location Services, and Donation Center Database

The Service uses Apple Maps (MapKit) to display donation center locations. Location data used for map display is processed in accordance with Apple's privacy policies. We do not store your precise location on our servers.

Location access is used solely to provide map functionality within the app. You may deny location permissions in your device settings; map features may have limited functionality as a result.

The donation center database featured in Food Ninja is manually curated and maintained by the developer. While we make reasonable efforts to keep it accurate and up to date, we make no representations or warranties regarding the accuracy, completeness, current operating status, or eligibility criteria of any listed donation center. Information may be outdated or incorrect. You should independently verify the details of any donation center before making a visit or donation.

8. Third-Party Services and Calendar Integration

The Service integrates the following third-party services:

- Sign in with Apple — governed by Apple's Terms of Service and Privacy Policy
- Sign in with Google — governed by Google's Terms of Service and Privacy Policy
- Apple Maps (MapKit) — governed by Apple's Terms of Service
- Google Calendar and Google Tasks (optional, user-activated) — governed by Google's Terms of Service and Privacy Policy
- Apple Calendar and Apple Reminders (optional, user-activated) — governed by Apple's Terms of Service and Privacy Policy

Calendar and Reminders Sync: You may optionally enable syncing of your food expiry records to Google Calendar, Google Tasks, Apple Calendar, and/or Apple Reminders. This feature requires granting the app the necessary permissions on your device. For Google Calendar and Google Tasks sync, we use your stored Google OAuth refresh token solely to perform sync operations on your behalf. This token is used for no other purpose. You may revoke this access at any time by disabling the sync feature in the app or by deleting your account.

We are not responsible for the privacy practices or content of these third-party services. Your use of these services is subject to their respective terms and policies.

9. Intellectual Property

All content, design, code, trademarks, and materials within the Service, including but not limited to the Food Ninja name, logo, user interface, and original text, are the exclusive intellectual property of Albert Huang and are protected by applicable copyright, trademark, and intellectual property laws.

You are granted a limited, non-exclusive, non-transferable, revocable license to use the Service for personal, non-commercial purposes in accordance with these Terms. You may not copy, modify, distribute, sell, sublicense, or create derivative works from any part of the Service without our prior written permission.

10. Prohibited Conduct

You agree not to:

- Use the Service for any unlawful purpose or in violation of these Terms
- Attempt to reverse engineer, decompile, or disassemble any part of the Service
- Interfere with or disrupt the integrity or performance of the Service or its servers
- Use automated scripts, bots, or other means to access the Service in an unauthorized manner
- Impersonate any person or entity or misrepresent your affiliation with any person or entity
- Upload or transmit any malicious code, virus, or harmful data
- Attempt to gain unauthorized access to any portion or feature of the Service

11. Disclaimer of Warranties

THE SERVICE IS PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS WITHOUT WARRANTIES OF ANY KIND, EITHER EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, OR NON-INFRINGEMENT.

We do not warrant that the Service will be uninterrupted, error-free, secure, or free of viruses. We do not warrant the accuracy, reliability, or completeness of any content available through the Service.

12. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT SHALL ALBERT HUANG BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES, OR DAMAGES FOR LOSS OF PROFITS, REVENUE, DATA, GOODWILL, OR OTHER INTANGIBLE LOSSES, ARISING OUT OF OR IN CONNECTION WITH YOUR USE OF OR INABILITY TO USE THE SERVICE.

OUR TOTAL LIABILITY TO YOU FOR ANY CLAIMS ARISING UNDER THESE TERMS SHALL NOT EXCEED THE AMOUNT YOU PAID US IN THE SIX (6) MONTHS PRECEDING THE CLAIM, OR TWD 1,000, WHICHEVER IS GREATER.

13. Indemnification

You agree to indemnify, defend, and hold harmless Albert Huang and his affiliates, officers, agents, employees, and licensors from any claims, liabilities, damages, losses, and expenses (including reasonable attorneys' fees) arising out of or in any way related to your use of the Service, your violation of these Terms, or your violation of any rights of another party.

14. Governing Law and Dispute Resolution

These Terms are governed by and construed in accordance with the laws of the Republic of China (Taiwan), without regard to its conflict of law provisions.

Any dispute arising out of or relating to these Terms or the Service shall be subject to the exclusive jurisdiction of the competent courts located in Taiwan.

Notwithstanding the above, because user data is stored on servers located in Germany (European Union), data protection matters are additionally subject to the General Data Protection Regulation (GDPR). In the event of a conflict between Taiwan law and GDPR with respect to data protection, GDPR shall prevail to the extent required by law.

15. Changes to These Terms

We reserve the right to update or modify these Terms at any time. When we make material changes, we will update the Effective Date at the top of this document and, where appropriate, notify you through the app or via email.

Your continued use of the Service after any modification constitutes your acceptance of the updated Terms. If you do not agree to the updated Terms, you must stop using the Service.

16. Termination

We reserve the right to suspend or terminate your account and access to the Service at our sole discretion, without notice, if we believe you have violated these Terms or applicable law.

Upon termination, your right to use the Service will immediately cease. Sections 9, 11, 12, 13, and 14 shall survive any termination.

17. Contact Information

If you have any questions, concerns, or feedback regarding these Terms, please contact us at:

Albert Huang — Food Ninja Developer

General Support: support@food-ninja.com

Privacy Inquiries: privacy@food-ninja.com

Legal Matters: legal@food-ninja.com

Developer: alberthuang@food-ninja.com